

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2289

By: Hilbert

AS INTRODUCED

An Act relating to federal officials; creating the Oklahoma Federal Officials Security Act of 2025; providing definitions; establishing notice system for federal official and their immediate family to ensure compliance; prohibiting state agencies from publicly posting or displaying certain information; clarifying exceptions; authorizing the Executive Director of the Office of Management and Enterprise Services to make notice on behalf of federal officials; providing what is proper notice; permitting delegation of authority; providing alternative to individual notice; directing the Executive Director of the Office of Management and Enterprise Services to submit report; prohibiting certain acts by entities with respect to certain information; providing exceptions; prohibiting persons, businesses, and associations from certain activities; providing exceptions; establishing time within the removal of certain information must be made; prohibiting transfer of information; providing exceptions; creating a right of action for certain individuals; providing penalty for violations; clarifying scope of act; providing for severability; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

1 SECTION 1. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 401 of Title 51, unless there is
3 created a duplication in numbering, reads as follows:

4 This act shall be known and may be cited as the "Oklahoma
5 Federal Officials Security Act of 2025".

6 SECTION 2. NEW LAW A new section of law to be codified
7 in the Oklahoma Statutes as Section 402 of Title 51, unless there is
8 created a duplication in numbering, reads as follows:

9 As used in this act:

10 1. The term "federal official" means any current federally
11 elected official of the state;

12 2. The term "commercial entity" means any corporation,
13 partnership, limited partnership, proprietorship, sole
14 proprietorship, firm, enterprise, franchise, or association engaged
15 in the buying or selling of goods or services for profit;

16 3. The term "covered information" means:

17 a. a home address, including primary residence or
18 secondary residences of a federal official,

19 b. a home or personal mobile telephone number, or the
20 direct telephone number of a government-issued cell
21 phone or private extension in the chambers of a
22 federal official,

23 c. a personal email address of a federal official,
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- d. the Social Security number, driver license number, or home address displayed on voter registration information of a federal official,
- e. bank account or credit or debit card information of a federal official,
- f. the home or other address displayed on property tax records or held by a federal, state, or local government agency of a federal official, including any secondary residence and any investment property at which a federal official resides for part of a year,
- g. a license plate number or home address displayed on vehicle registration information of a federal official,
- h. the identification of children under the age of eighteen (18) years of age of a federal official or any child under the age of twenty-six (26) years of age whose permanent residence is the home of the federal official,
- i. the full date of birth,
- j. a photograph of any vehicle that legibly displays the license plate or a photograph of a residence that legibly displays the address of the residence of a federal official,

- k. the name and address of a school or day care facility attended by immediate family of a federal official,
- l. the name and address of an employer of immediate family of a federal official, or
- m. the name and address of a place of worship the federal official or immediate family of a federal official attends;

4. The term "immediate family" means a spouse, child, or parent of a federal official or any other familial relative of a federal official whose permanent residence is the same as the federal official;

5. The term "social media" means any online electronic medium or a live chat system that:

- a. primarily serves as a medium for users to interact with content generated by other third-party users of the medium,
- b. enables users to create accounts or profiles specific to the medium or to import profiles from another medium, and
- c. enables one or more users to generate content that can be viewed by other third-party users of the medium;

6. The term "state agency" means:

- a. an executive agency, as defined by Oklahoma Statute,

1 b. any county, local or municipal governing body, or
2 regulatory body, and

3 c. any state agency in the judicial branch or legislative
4 branch; and

5 7. The term "transfer" means to sell, license, trade, or
6 exchange for consideration the covered information of a federal
7 official or immediate family.

8 SECTION 3. NEW LAW A new section of law to be codified
9 in the Oklahoma Statutes as Section 403 of Title 51, unless there is
10 created a duplication in numbering, reads as follows:

11 A. Each federal official may:

12 1. File written notice of the status of the individual as a
13 federal official, for themselves and immediate family, with each
14 state agency that includes information necessary to ensure
15 compliance with this section; and

16 2. Request that each state agency described in Section 2 of
17 this act mark as private their covered information and that of their
18 immediate family.

19 B. State agencies shall not publicly post or publicly display
20 content that includes covered information of a federal official or
21 immediate family. State agencies, upon receipt of a written request
22 under paragraph 1 of subsection A of this section, shall remove the
23 covered information of the federal official or immediate family from
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1 publicly available content not later than seventy-two (72) hours
2 after such receipt.

3 C. Nothing in this section shall prohibit a state agency from
4 providing access to records containing the covered information of a
5 federal official to a third party if the third party:

6 1. Possesses a signed release from the federal official or a
7 lawful court order;

8 2. Is subject to the requirements of Title V of the federal
9 Gramm-Leach-Bliley Act, 15 U.S.C., Section 6801 et seq.; or

10 3. Executes a confidentiality agreement with the state agency.

11 SECTION 4. NEW LAW A new section of law to be codified
12 in the Oklahoma Statutes as Section 404 of Title 51, unless there is
13 created a duplication in numbering, reads as follows:

14 Upon written request of a federal official, the Executive
15 Director of the Office of Management and Enterprise Services is
16 authorized to make any notice or request required or authorized by
17 this act on behalf of the federal official. The notice or request
18 shall include information necessary to ensure compliance with this
19 act. The Executive Director may delegate this authority to an
20 appropriate state agency. Any notice or request made under this act
21 shall be deemed to have been made by the federal official and comply
22 with the notice and request requirements of this act.

23 In lieu of individual notices or requests, the Executive
24 Director of the Office of Management and Enterprise Services may

1 provide state agencies, county and municipal governments, commercial
2 entity, persons, businesses, or associations with a list of federal
3 officials and their immediate family that includes information
4 necessary to ensure compliance with this act, as determined by the
5 Executive Director for the purpose of maintaining compliance with
6 this act. Such list shall be deemed to comply with individual
7 notice and request requirements of this act.

8 SECTION 5. NEW LAW A new section of law to be codified
9 in the Oklahoma Statutes as Section 405 of Title 51, unless there is
10 created a duplication in numbering, reads as follows:

11 Not later than one (1) year after the date of enactment of this
12 act, and biennially thereafter, the Executive Director of the Office
13 of Management and Enterprise Services shall submit to the
14 Legislature an annual report that includes:

15 1. A detailed amount spent by the state and local governments
16 on protecting federal officials' covered information;

17 2. Where the federal officials' covered information was found;
18 and

19 3. The collection of any new types of personal data found to be
20 used to identify federal officials who have received threats,
21 including prior home addresses, employers, and institutional
22 affiliations such as nonprofit boards.
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1 SECTION 6. NEW LAW A new section of law to be codified

2 in the Oklahoma Statutes as Section 406 of Title 51, unless there is
3 created a duplication in numbering, reads as follows:

4 A. Except as provided in subsection B of this section, no
5 person, business, or association shall publicly post or publicly
6 display on the Internet covered information of a federal official or
7 immediate family if the federal official has made a written request
8 to that person, business, or association to not disclose the covered
9 information of the federal official or immediate family.

10 B. Subsection A of this section shall not apply to:

11 1. Covered information that the federal official or immediate
12 family voluntarily publishes on the Internet after the date of
13 enactment of this act; or

14 2. Covered information lawfully received from a state
15 government source or from an employee or agent of the state
16 government.

17 C. After receiving a written request under this section, the
18 person, business, or association shall remove within seventy-two
19 (72) hours the covered information from the Internet and ensure that
20 the information is not made available on any publicly available
21 website controlled by that person, business, or association, and
22 ensure that the covered information of the federal official or
23 immediate family is not made available on any publicly available
24 website controlled by that person, business, or association.

D. This section shall not apply to:

1. Covered information that the federal official or immediate family voluntarily publishes on the Internet after the date of enactment of this act; or

2. A transfer made at the request of the federal official or that is necessary to effectuate a request to the person, business, or association from the federal official.

SECTION 7. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 407 of Title 51, unless there is created a duplication in numbering, reads as follows:

A. A federal official or their immediate family whose covered information is made public as a result of a violation of this act may bring an action seeking injunctive or declaratory relief in any court of competent jurisdiction. If the court grants injunctive or declaratory relief, the person, business, or association responsible for the violation shall be required to pay the costs and reasonable attorney fees of the federal official or immediate family, as applicable.

B. If a person, business, or association knowingly violates an order granting injunctive or declaratory relief under subsection A of this section, the court issuing such order may:

1. If the person, business, or association is a government agency:

1 a. impose a fine not greater than Four Thousand Dollars
2 (\$4,000.00), and

3 b. award to the federal official or their immediate
4 family, as applicable, court costs and reasonable
5 attorney fees; and

6 2. If the person, business, or association is not a government
7 agency, award to the federal official or their immediate family, as
8 applicable:

9 a. an amount equal to the actual damages sustained by the
10 federal official or their immediate family, and

11 b. court costs and reasonable attorney fees.

12 SECTION 8. NEW LAW A new section of law to be codified
13 in the Oklahoma Statutes as Section 408 of Title 51, unless there is
14 created a duplication in numbering, reads as follows:

15 A. Nothing in this act shall be construed:

16 1. To prohibit, restrain, or limit the lawful investigation or
17 reporting by the press of any unlawful activity or misconduct
18 alleged to have been committed by a federal official or their
19 immediate family;

20 2. To limit the publication or transfer of covered information
21 that the federal official or their immediate family member
22 voluntarily publishes on the Internet after the date of enactment of
23 this act; or
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1 3. To prohibit information sharing by a commercial entity to a
2 federal, state, tribal, or local government, or any unit thereof.

3 B. This act shall be broadly construed to favor the protection
4 of the covered information of federal officials and their immediate
5 family.

6 SECTION 9. NEW LAW A new section of law to be codified
7 in the Oklahoma Statutes as Section 409 of Title 51, unless there is
8 created a duplication in numbering, reads as follows:

9 If any provision of this act, an amendment made by this act, or
10 the application of such provision or amendment to any person or
11 circumstance is held to be unconstitutional, the remainder of this
12 act and the amendments made by this act and the application of the
13 remaining provisions of this act and amendments to any person or
14 circumstance shall not be affected.

15 SECTION 10. This act shall become effective November 1, 2025.

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